

M/s Vinayak Roller Flour Mills v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 November 2024 · Writ-C No. 26637 of 2024 · **Writ disposed; Executive Engineer directed to decide the Clause 6.5 complaint by a reasoned order within eight weeks after hearing.**

HEADNOTE

On a writ complaining of inaction on a Clause 6.5 Supply Code objection, the Allahabad High Court directed the Executive Engineer, MVVNL, Electricity Distribution Division-I, Shahjahanpur, to pass a reasoned order on the petitioner's 8 January 2024 complaint within eight weeks after granting a hearing, and disposed of the petition without deciding the billing dispute.

FACTUAL SUMMARY

The petitioners, M/s Vinayak Roller Flour Mills and another, invoked Article 226 of the Constitution before the Allahabad High Court against Madhyanchal Vidyut Vitran Nigam Limited. They were aggrieved by the licensee's inaction on their complaint dated 8 January 2024, filed under Clause 6.5 of the U.P. Electricity Supply Code, 2005, which had not been considered by the Executive Engineer, Electricity Distribution Division-I, Shahjahanpur. They sought a writ directing decision of that pending objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

Where a Clause 6.5 complaint remains undecided, the Executive Engineer must pass a reasoned order on it within eight weeks after granting the consumer a hearing; the High Court will not itself decide the billing objection on a writ complaining only of inaction. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 BILLING COMPLAINT

The Court did not examine the objection dated 8 January 2024; it only directed a reasoned order after hearing. ¶ 3-5